

on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$19,251.26, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$11,314.26.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,937.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-03699
CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON
***HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AS TO JANICE ARMSTRONG**
FILED BY:
TENTATIVE RULING:
Background

Plaintiff filed against Defendant Smith a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as sanctions.

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment A of the declaration filed alongside the Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff also filed, within the declaration, an accounting of attorney fees and costs involved in the filing of this Motion, amounting to \$460.

Plaintiff filed proof that they served the Motion and notice of the hearing on counsel for

Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant Smith is sanctioned in the amount of \$460.

Plaintiff to draw and file Order.

3. 9:00 AM CASE NUMBER: L24-03844

CASE NAME: CONNECT BY AMERICAN FAMILY VS. FATIMA CARLOS

***HEARING ON MOTION FOR DISCOVERY TO DEEM REQUEST FOR ADMISSIONS ADMITTED AND FOR SANCTIONS IN THE AMOUNT OF \$585**

FILED BY: CONNECT BY AMERICAN FAMILY

TENTATIVE RULING.

Plaintiff has filed a Motion to Deem Facts Admitted. There is no opposition, but the proof of service attached to the Motion indicates email service to the Defendant on 6/10/26. This is short of the 16 court days of notice required by the CCP (excluding the additional time required for email service).

What's more, even if the service had been timely, there is no indication that Defendant, who is self-represented, ever consented to service by email.

Disposition

This Motion will be continued to 9/22/26, 9am.